



POLICE DEPARTMENT

July 13, 2007

MEMORANDUM FOR: POLICE COMMISSIONER

Re: Police Officer Luis Sanchez
Tax Registry No. 912067
Highway Unit No. 3
Disciplinary Case No. 82276/06

The above-named member of the Department appeared before me on March 12, 2007, charged with the following:

1. Said Police Officer Luis Sanchez, while assigned to Traffic Manhattan Task Force, and off duty on about January 20, 2006 at 1645 hours, inside Queens County, did wrongfully engage in conduct prejudicial to the good order, efficiency and discipline of the Department, in that said Police Officer did run after a running vehicle being operated by an individual known to the Department while yelling obscenities at said person.

P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT-PROHIBITED CONDUCT
GENERAL REGULATIONS

2. Said Police Officer Luis Sanchez, while assigned as indicated in Specification #1, on about January 20, 2006 at 1845 hours, inside Queens County, did wrongfully engage in conduct prejudicial to the good order, efficiency and discipline of the Department, in that said Police Officer did approach the individual indicated in Specification #1, grabbed a cellular phone from said individual's hand and yelled obscenities at said individual.

P.G. 203-10, Page 1, Paragraph 5 - PUBLIC CONTACT-PROHIBITED CONDUCT
GENERAL REGULATIONS

3. Said Police Officer Luis Sanchez, while assigned as indicated in Specification #1, on about January 20, 2006 at 1845 hours, inside Queens County, having been involved in a police incident, did thereafter fail to request the response of the patrol supervisor as required.

P.G. 212-32, Page 1, Paragraph 2 – OFF DUTY INCIDENTS INVOLVING
MEMBERS OF THE SERVICE

The Department was represented by Yadhira Gonzalez-Taylor, Esq., Department Advocate's Office, and the Respondent was represented by Michael Martinez, Esq.

The Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent is found Guilty of Specification Nos. 2 and 3 and Not Guilty of Specification No. 1.

EVIDENCE

The Department's Case

The Department called Sergeant Peter Murray and Captain George Fitzgibbons as witnesses and offered the statements of [REDACTED] and [REDACTED]

Sergeant Peter Murray

Sergeant Murray was assigned to investigate [REDACTED] 911 complaint against the Respondent, her [REDACTED]. He conducted an Official Interview of the Respondent, on February 24, 2006, and he conducted two unrecorded telephone interviews of [REDACTED]. [REDACTED] During the first interview on February 22, 2006, she was uncooperative. During the last interview, on March 1, 2006, she told him that she and the Respondent

were in [REDACTED] and that "things are now fine." She told him that she got her cell phone back shortly after the Respondent had taken it from her.

On cross-examination, he testified that he was not present with Captain George Fitzgibbons during the "call out." In his closing memorandum, he wrote that he substantiated [REDACTED] allegation regarding the initial incident based on her claim to Captain Fitzgibbons that the Respondent had caused her and her [REDACTED] annoyance and alarm by chasing their car. He did not recommend that the Respondent be charged with grabbing a cell phone out of [REDACTED]' hand.

Captain George Fitzgibbons

Captain Fitzgibbons, who was assigned as Duty Captain on January 20, 2006, recalled that based on a 911 call made by [REDACTED] (DX 1), he responded to a "call out" at the 104 Precinct where he conducted tape-recorded interviews of [REDACTED] (DX 2B) and [REDACTED] (DX 2C).

On cross-examination, he testified that the Respondent was not arrested or interviewed that night. He did not know what had happened to the cell phone the Respondent took from [REDACTED].

[REDACTED]

[REDACTED], at a tape-recorded interview conducted on January 20, 2006 (DX 2), stated that the Respondent had called her that day, at about 4:30, on her cell phone and told her that he was coming to pick up the car. She told him that since they had been having [REDACTED] she did not think it was a good idea. He told her, "If you don't

give it to me I'm going to say that it was stolen." To avoid a confrontation with the Respondent, she and her [REDACTED] left the house. As they were getting into the car, her [REDACTED] saw the Respondent walking down the block toward them. The Respondent started to run after them and he chased the car, as they sped off. As she turned off of [REDACTED] onto [REDACTED] Avenue, the Respondent continued to run after the car on foot.

When she was asked whether he was yelling any profanities at her as he was running after the car, she answered, "He was when my [REDACTED] told me that he was running. I got really scared. So then when I was pulling off I saw him through the rear view mirror on the side." She could see his face, which scared her, but she did not know if he said anything because at that point in time she was just trying to get out of there.

She parked the car on a dead end street near the 104 Precinct with the intention of entering the station house but she decided not to because she "didn't want to put him in any type of predicament." But because they have had "a lot of [REDACTED]" she "didn't know what his intentions were." She called his [REDACTED] who is also a member of the service, explained to her what was going on, and asked her to call her [REDACTED] and calm him down, because she "was really scared I didn't know what to do." She also called a locksmith to change the locks on the doors of the residence.

Later that day, while two locksmiths were changing the locks on the doors, she saw the Respondent pull up to the residence in his [REDACTED]'s car. She was talking on her cell phone speaking with her girlfriend when the Respondent arrived and she told her, "Please do not hang up. Oh my God, he's here." He got out of the car and stood outside. He told her that he needed his parking plaque. She told him "fine" and opened the car door and took the plaque out of the car and handed it to him. She was holding her cell

phone in her other hand. He grabbed the phone and he threw it after he had "smashed" the cell phone out of her hand. He then "screamed a bunch of obscenities," that she was "a bitch" and that she does whatever "the fuck I want." She told him, "Listen, I'm going to call the cops because now you know you're overreacting again and you know you promised that's all you wanted and you were going to leave." She got scared and yelled in the street to her [REDACTED] who was upstairs, "[REDACTED] just call the cops now." Her [REDACTED] dialed 911. The Respondent left. "The guy from the barbershop which is right next door" came outside and asked her if everything was okay. She yelled in the hallway to [REDACTED] to call 911 because when the Respondent sped off, she did not know if he would come back.

[REDACTED]

[REDACTED] at a tape-recorded interview conducted on January 20, 2006 (DX 2C), was asked about the two incidents that occurred on that day. He was asked, "When in the first incident when your mom drove off and you saw your [REDACTED] running after the car. Was he saying anything? Did you hear anything?" He answered, "No, he just running really fast." The Respondent never got a hand on the car because his mother "pulled out too quick."

Later, he was upstairs watching his little [REDACTED] when he heard his mother screaming, "Somebody call 911." He looked out the window and saw his [REDACTED] driving off having "pulled out really quick." He "got really scared" and ran downstairs and his mother told him what had happened. He called 911, told the operator to hold on and gave the phone to his mother. He heard his mother yelling at him and a male voice yelling. Although he was not really sure who the man was, he assumed, based on the

earlier incident, that it was the Respondent. He went to the kitchen window and saw the Respondent drive away. He called 911 on his cell phone. He did not see the Respondent take a cell phone away from his mother or throw the phone. He heard his mother say, "Call the police! Call 911!"

The Respondent's Case

The Respondent testified in his own behalf.

The Respondent

The Respondent, who has made over 100 arrests, testified that in November, 2004, he was involved in an on-duty scooter accident that resulted in an injury to his groin area. The Respondent testified that as a result of this injury he "could not perform sexually" and that this adversely affected [REDACTED]. He testified that during the time period relevant to these charges, he was studying for the sergeant's examination, which was to take place on January 21, 2006. His [REDACTED] complained that he was not spending enough time with his family. They agreed that after Thanksgiving, they would live apart for the last month prior to the examination. The Respondent testified that although he went to Puerto Rico so that he could study without distractions, he and his [REDACTED] spoke every day. The Respondent testified that he had a good relationship with his s [REDACTED] [REDACTED]

The Respondent recalled that on January 18, 2006, he telephoned his [REDACTED] and asked her if he could pick up their car on January 20, 2006, so that he could drive to the sergeant's examination the next day. When he arrived at their residence on January 20,

2006, at about 1645 hours, he saw his [REDACTED] driving away in the car. The Respondent believed that his [REDACTED] had seen him as she was driving away because he arrived at the residence on foot. He testified that he did not chase after the car because he is unable to run as a result of his groin injury. He placed a call to his [REDACTED]'s cell phone and reminded her that they had agreed that he could come over and pick up the car.

The Respondent testified that at about 1845 hours, he returned to the residence after having purchased groceries for his [REDACTED]. He was standing on the sidewalk in front of the residence when she arrived home in the car. He told her that he needed his parking plaque. His [REDACTED] opened the car door and he took the plaque out of the car. They then engaged in a conversation which got "loud" while they were standing about three feet away from each other. The Respondent told his [REDACTED] that he believed that they had "worked things out," but that she was not returning his telephone calls, even though he had given her a cell phone. She was holding this cell phone in her hand. He took the cell phone out of her hand and told her, "Get your own phone." She did not tell him that she was going to call 911. When he drove away, he was not aware that she had told [REDACTED] to call 911. The Respondent later gave Sergeant Bell the cell phone so that he could give it back to his [REDACTED].

On cross-examination, the Respondent testified that he was placed on modified assignment after a prior domestic incident, but that he was never served with charges and specifications regarding that incident. He was placed on modified assignment as a result of the present charges. He denied directing any profanity at his [REDACTED]. He did not believe that taking the cell phone away from his [REDACTED] during a loud argument required him to request that the patrol supervisor respond to the scene. He acknowledged that he had

taken the sergeant's examination once previously. He did not take any classes to prepare for the January 21, 2006 examination.

FINDINGS AND ANALYSIS

Specification No. 1

The Respondent is charged with having wrongfully engaged in conduct prejudicial to the good order, efficiency and discipline of the Department in that on January 20, 2006 at about 1645 hours, he allegedly ran after a moving vehicle being operated by his [REDACTED] "while yelling obscenities at" her.

The only evidence offered by the Department to prove that the Respondent engaged in this alleged misconduct was the statements made by [REDACTED] and [REDACTED] which were offered as hearsay at this trial. When [REDACTED] was asked whether the Respondent was yelling any profanities at her while she was operating the car, she offered a confusing and possibly inconsistent answer. She stated, "He was when my [REDACTED] told me that he was running," but she then stated that as she started to drive away, "I don't know if he said anything" because at that point she was "just trying to get out of there." She was never asked what profane words she had heard the Respondent utter. When [REDACTED] was asked, "When your mom drove off and you saw your [REDACTED] running after the car, was he saying anything? Did you hear anything?" Justin answered, "No. He (was) just running really fast."

[REDACTED]'s statement that the Respondent did not say anything at all, much less yell profanities, refutes [REDACTED]'s claim that the Respondent had initially yelled profanities. Moreover, [REDACTED]'s assertion that the Respondent's action frightened her is inconsistent

with the fact that she did not call 911 after this incident. Her absence at this trial precluded Respondent's counsel from having the opportunity to cross-examine her regarding what she heard the Respondent say and regarding why she did not call 911 after this incident.

Thus, even if the Respondent briefly ran after the car trying to get [REDACTED]'s attention as she was driving away from their residence, this act, standing alone, does not rise to the level of actionable misconduct.

The Respondent is found Not Guilty of Specification No. 1.

Specification No. 2

The Respondent is charged with having wrongfully engaged in conduct prejudicial to the good order, efficiency and discipline of the Department in that on January 20, 2006 at about 1845 hours, he grabbed a cell phone out of the hand of his [REDACTED] and yelled obscenities at her.

The Respondent admitted that while he and his [REDACTED] were standing outside, he grabbed the cell phone his [REDACTED] was holding in her hand and pulled it out of her hand because he had decided to take it away from her. Although the Respondent denied yelling any obscenities at her, the Respondent acknowledged that he was upset at her because she was not returning his calls, because she had ignored their previously made agreement that he could come over and pick up the car that day, and because she did not want to see him even though he believed that they had "worked things out." The Respondent further admitted that even though they were speaking face to face, their argument became "loud." All of these admissions by the Respondent lend support to his [REDACTED]'s claim that

the Respondent was so angry at her that before he grabbed the cell phone out of her hand he told her "you just do whatever the fuck you want" and called her "a bitch."

The Respondent is found Guilty of Specification No. 2.

Specification No. 3

It is charged that the Respondent, having been involved in a police incident on January 20, 2006 at about 1845 hours, did thereafter fail to request the response of the patrol supervisor as required.

The 911 tape in evidence supports [REDACTED]'s hearsay statement that she told the Respondent before he left the scene that she intended to immediately contact the Department and report that he had taken her cell phone (in that she stated to the 911 operator, "I told him I'm going to call the cops." DX 1).

Although the Respondent testified that when he drove away, he was not aware that his [REDACTED] had told [REDACTED] to call 911, the issue of whether the Respondent was required to request the response of the patrol supervisor does not hang on the question of whether he knew that his [REDACTED] had told [REDACTED] to call 911. Rather, the issue is: Was the Respondent required to comply with the mandates of Patrol Guide Procedure 212-32?

Patrol Guide Procedure 212-32 states that "(w)hen an off duty uniformed member of the service is at an unusual police occurrence to which the uniformed member of the service is either a participant or a witness" the member must "(r)emain at the scene of incident when feasible and consistent with personal safety" and "(r)equest response of patrol supervisor, precinct of occurrence." The Patrol Guide further notes that:

For purposes of this procedure an unusual police occurrence shall include **family disputes** (emphasis added) and other incidents of domestic violence in which the officer

is either a participant or a witness. When remaining at the scene is inappropriate, the uniformed member of the service concerned may leave the scene; however, said member must promptly notify the desk officer, precinct of occurrence, and be guided by the desk officer's instructions.

In Disciplinary Case No. 80529/04 (Disposition of charges approved by the Police Commissioner on August 10, 2006), the Respondent was found guilty of having failed to request the response of the patrol supervisor after he had been involved in a family dispute. In that case, as here, a loud argument between the Respondent and his estranged wife, which took place in public outside the entrance to the Respondent's residence, escalated into some minor physicality (the Respondent's wife grabbed and slightly ripped his shirt). Even though the Respondent in that case, to avoid any further physical contact, retreated into his residence and shut the door, he was found guilty of having failed to request the response of the patrol supervisor to this unusual occurrence.

Consistent with that decision, I find the Respondent Guilty of Specification No. 3.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined. See Matter of Pell v. Board of Education, 34 N.Y.2d 222 (1974).

The Respondent was appointed to the Department on February 28, 1994.

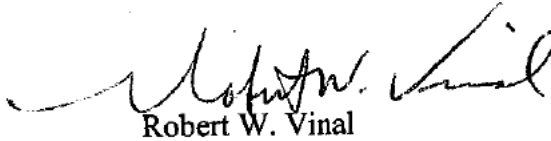
Information from his personnel folder that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Respondent has been found guilty of engaging in conduct prejudicial to the good order, efficiency and discipline of the Department by grabbing a cellular phone from his [REDACTED]'s hand and yelling obscenities at her, and also of having failed to request the response of the patrol supervisor to this family dispute.

The Respondent in Disciplinary Case No. 80529/04 (cited above) had a prior, formal disciplinary adjudication (as the Respondent does here). In that case, the Police Commissioner imposed a penalty of the loss of five vacation days for the Respondent's failure to request the response of the patrol supervisor to a family dispute. In the instant case, the Respondent also engaged in the undisciplined act of grabbing a cell phone and pulling it out of his [REDACTED]'s hand and loudly yelling obscenities at her in public. This misconduct also merits a five day penalty.

Therefore, it is recommended that the Respondent forfeit ten vacation days.

Respectfully submitted,



Robert W. Vinal

Assistant Deputy Commissioner – Trials

APPROVED



FEB 04 2008
RAYMOND W. KELLY
POLICE COMMISSIONER